

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable Nancy L. Fineman
400 County Center, Redwood City
Department 4, Courtroom 4C
Tuesday September 22, 2026

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept4@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling **OR** call (650) 261-5104 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 160 624 8977 Password: 230279

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

2:00 PM

LINE 1

22-CIV-04123

MARY HURLBUT VS. WILLIAM B HURLBUT, ET AL.

MARY HURLBUT
WILLIAM B HURLBUTMARC L SHEA
DARIN T JUDD

MOTION FOR LEAVE TO FILE AND SERVE THIRD AMENDED ANSWER TO CROSS-COMPLAINT

TENTATIVE RULING:

The court GRANTS plaintiff/cross-defendant Mary Hurlbut's "Motion for Leave to File Third-Amended Answer to Cross-Complaint," filed June 30, 2026, which seeks leave of court to file a proposed Third-Amended Answer to William Hurlbut's and Erica Goldman's March 9, 2023 Cross-Complaint. (Code Civ. Proc. §§ 473(a)(1); 576.)

BACKGROUND

This family dispute concerns a home in Woodside, CA (the Property). As alleged, plaintiff Mary Hurlbut (Plaintiff) shares ownership of the home with her father, William Hurlbut (William) and his wife Erica Goldman (Erica). Plaintiff's Complaint seek a partition of the Property and an accounting.

Plaintiff filed this lawsuit in October 2022, almost four years ago. On March 9, 2023, over three and-one half years ago, defendants William and Erica filed a cross-complaint against Plaintiff, alleging that the parties (plaintiff, William, and Erica) purchased the property in 2010 and currently hold ownership as tenants-in-common, with plaintiff owning a 1/3 interest and William and Erica holding a 2/3 interest. The Cross-Complaint alleges that the parties also *agreed to share the costs of all improvements/renovations, and expenses*, in proportion to their respective ownership interests. The cross-complaint further alleges that in 2012, Plaintiff signed a promissory note in the amount of \$353,200 to secure plaintiff's reimbursement, to William, for plaintiff's portion of the improvement/renovation costs and expenses. The cross-complaint alleges that Plaintiff currently owes over \$400,000 for Plaintiff's share of improvements/renovation costs and other expenses, which William and Erica contend should be paid by Plaintiff either from separate funds, or from Plaintiff's share of the sales proceeds, should the Property be sold.

On March 22, 2023, Plaintiff filed her original answer to the cross-complaint, asserting affirmative defenses of statute of limitations, laches, failure to mitigate, and estoppel.

On January 13, 2025, this case was set to start trial but the trial date was vacated in late 2024. There was a judicial reassignment, the newly assigned judge was challenged and the case was assigned to the Hon. Nancy L. Fineman on December 31, 2024. On January 7, 2025, this court held a trial setting conference and wanted to have a trial as quickly as possible since the case had already been set for trial. According to the minutes, "Plaintiff is ready for a trial date."

Defendants are not ready for a trial date as Judge Greenberg [the previous judge] at the 12/19/2024 hearing on Plaintiff's motion to amend answer re-opened discovery on the two new affirmative defenses which are Equitable Estoppel and Laches." (Min. of Jan. 7, 2025.) The court did not set a trial date due to the need to conduct more discovery.

On August 1, 2025, Plaintiff filed her amended answer to the cross-complaint, asserting a new code reference to an additional statute of limitations defense. On June 10, 2026, Plaintiff filed a second amended answer to the cross-complaint, asserting an unclean hands defense.

Discovery has now closed. A jury trial is scheduled to begin January 20, 2027.

On June 30, 2026, twenty days after filing the second amended answer to the cross-complaint, Plaintiff filed this motion, seeking leave to file a third-amended Answer to the cross-complaint, for the purpose of adding new allegations pertaining to the execution of the 2012 Promissory Note, and to assert several new affirmative defenses relating to the 2012 Promissory Note, including new defenses that the Promissory Note was procured via fraud, via undue influence, by mutual mistake, by unilateral mistake, via breach of fiduciary duty, and via breach of the implied covenant of good faith and fair dealing. Plaintiff also seeks to add affirmative defenses that the Note is unenforceable due to lack of consideration, due to waiver, due to "payment/offset," and because Cross-Complainant breached the Note. (June 30, 2026 Shea Decl., Ex. B, C.)

PLAINTIFF HAS NOT EXPLAINED WHEN THE FACTS GIVING RISE TO THE PROPOSED AMENDMENTS WERE DISCOVERED, NOR WHY PLAINTIFF DID NOT REQUEST LEAVE TO AMEND MUCH EARLIER

California courts exercise a liberal policy with respect to amending pleadings. (Code Civ. Proc., §§ 473, subd. (a); 576.) But that policy is not absolute, particularly where, as here, the party seeking leave to amend has not complied with the California Rules of Court, Rules 3.1324(b)(3) and (4), which state:

(b) Supporting declaration

A separate declaration must accompany the motion and must specify:

- (1) The effect of the amendment;
- (2) Why the amendment is necessary and proper;
- (3) *When the facts giving rise to the amended allegations were discovered; and*
- (4) *The reasons why the request for amendment was not made earlier.* (emphasis added.)

Plaintiff has not complied with Rule 3.1324(b)(3) or (4). Plaintiff filed her initial answer on March 9, 2023. Plaintiff filed this motion on June 30, 2026, *after discovery had closed* and it is being heard just three months before the January 2027 *continued* trial date. Plaintiff offers no explanation for waiting until June 2026 to seek leave of court to assert a litany of new affirmative defenses, all of which are based upon a 2012 promissory note, and a transaction that has been at issue in the Cross-Complaint since March 2023.

Plaintiff's moving papers offer no explanation of when Plaintiff learned of the relevant facts, Nor why Plaintiff did not assert these proposed new allegations and affirmative defenses three years ago. When Plaintiff filed her initial answer to the cross-complaint in early 2023, Plaintiff could have asserted all of these affirmative defenses, but did not. And thereafter, Plaintiff amended her Answer to the Cross-Complaint *twice*, yet still did not assert these proposed new affirmative defenses. Plaintiff's only explanation for this long delay appears for the first time in the September 15, 2026 Reply declaration (Shea), in which Plaintiff's counsel states:

In my opinion, Mary's prior denial of the allegations of the Cross-complaint and other affirmative defenses previously asserted (including laches, estoppel, failure to obtain Mary's informed consent, and unclean hands) preserved for Mary her rights to relevant jury instructions in this matter. However, in May 2026 I reviewed my file to prepare for trial. During my review, it occurred to me that opposing counsel might disagree with my position that Mary would be entitled to jury instructions on relevant issues, so I decided to bring this motion to amend to make sure Mary's rights to relevant jury instructions based on the facts and circumstances of this case are fully preserved.

(Sept. 15, 2026 Shea Decl., ¶ 6.)

Plaintiff's Reply brief argues that the proposed new affirmative defenses have already been the subject of discovery, and therefore, that Defendants/Cross-Complainants would not be prejudiced by granting leave to amend. (See Sept. 15, 2026 Shea Decl. [attaching Plaintiff's discovery responses].)

THE MOTION FOR LEAVE TO AMEND THOUGH IS GRANTED

Despite this failure to provide the required information about when Plaintiff first learned of these new facts, the court follows the policy of great liberality of pleadings. As our Supreme Court has said more than one hundred years ago, "In the matter of amending pleadings, this court has always counseled and sanctioned great liberality. No discussion upon so plain a proposition is necessary." (*Norton v. Bassett* (1910) 158 Cal. 425, 426–427.) This liberality is "particularly applicable to answers." (*Hyman v. Tarplee* (1944) 64 Cal.App.2d 805, 813–814; see *Coons v. Thompson* (1946) 75 Cal.App.2d 687, 690 [overruling demurrer to third amended answer].) Deny leave to amend permanently deprives the defendant (in this case cross-defendant] of a defense. (*Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150, 1159.)

*THE COURT RE-OPENS DISCOVERY WITH PLAINTIFF
PAYING ALL ATTORNEYS' FEES AND COSTS*

The court is cognizant of the increased work that William and Erica and other parties may have to do, including a change in trial strategy. However, that prejudice is not the type of prejudice that the law recognizes to allow denial of the amendment. The court therefore reopens discovery. Plaintiff is to make herself available for deposition on five-day's notice, respond to written discovery within ten days after service of the requests, and produce any new documents within

twenty days after service of the request. Plaintiff is to pay for the attorneys' fees and costs, including expedited deposition transcripts and experts, for all the additional work any party expends on this extra discovery. Plaintiff shall pay within ten days of receiving an invoice from counsel. If there is any dispute regarding the reasonableness of the fees and costs, the parties shall schedule an informal discovery conference before the civil commissioner before bringing a motion. If Plaintiff seeks additional discovery, the statutory rules for response apply.

CONCLUSION

Plaintiff is to file her amended answer within five court days of notice of entry of order.

The court notes that Plaintiff has also added new Doe defendants and that at least one has signed a notice and acknowledgment of receipt of summons and complaint. The court does not know if the newly added defendants will be filing any motions, e.g. pursuant to Code of Civil Procedure section 583.210 or to continue the trial, but the court warns the parties about Department 4's impacted calendar and the looming five-year deadline so that they can meet-and-confer regarding the trial, which is still scheduled for January 20, 2027.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for William and Erica shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 2

23-CIV-06074

SUNG SIM PARK, ET AL. VS. LYNDA LAKE GARDENS HOMEOWNERS ASSOCIATION, INC.,
ET AL.

SUNG SIM PARK

LYNDA LAKE GARDENS HOMEOWNERS ASSOCIATION, INC.

SEAN P. RILEY

SUZIE TAGLIERE

AMENDED MOTION OF DEFENDANTS LYNDA LAKE GARDENS HOMEOWNERS ASSOCIATION AND GARY ERNST FOR
SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

TENTATIVE RULING:

The Motion for Summary Judgment or, in the alternative, Summary Adjudication by Defendants Lynda Lake Gardens Homeowners Association (“Association”) and Gary Ernst (“Ernst”) (collectively “Defendants”) to the First Amended Complaint (“FAC”), which is supplemented by the First Supplemental Complaint (“FSC”), by Plaintiffs Sung Sim Park (“Park”) and Matthew Moskewicz (“Moskewicz”) (collectively “Plaintiffs”), is DENIED as to summary judgment, and DENIED as to summary adjudication of the First through Sixth Cause of Action and the issue of damages.

1. Background

In 2020, Plaintiffs purchased property located at 3875 Jefferson Avenue in Redwood City (“Plaintiffs’ property”), which is part of the Lynda Lake Gardens development (“LLG”). This action concerns in part Plaintiffs’ access to the central lake, Lynda Lake, in LLG and its surrounding pathway easements. Lynda Lake is located on its own lot known as Lot A. Defendant Lynda Lake Gardens Homeowners Association, Inc. (“Association”), through its Board, governs LLG.

Plaintiffs’ property is next to properties owned by Defendant Gary Ernst (“Ernst”), which are located at 3865 Jefferson Avenue and 937 Lakeview. Plaintiffs claim they hold an easement that runs across these properties to allow them to access the lake, which is often blocked and impeded by parked cars belonging to Ernst or his tenants. The easement and other portions of Lot A are also alleged to have impediments that make it difficult for Plaintiffs to use. Park suffers from polio, which renders traversing on uneven and irregular surfaces difficult. Plaintiffs allege that due to Park’s disability, they requested maintenance and repairs to the portions of the pathway easements and Lot A pursuant to the Second Amendment to Restated Declaration of Covenants, Conditions and Restrictions (“CC&Rs”) in operation at that time, but the Association claimed it did not have any common areas per Davis-Stirling, FEHA, FHAA or other law and that pathway easement improvements may only occur with the permission of the lot owner upon which a pathway easement crosses at Plaintiffs’ cost.

In August 2023, Ernst advised LLG owners that he would be installing a paver stone pathway within the 3865 Jefferson pathway easement. Plaintiffs objected to the pathway plans, but Ernst proceeded to construct it in September 2023. On September 5, 2023, the Board claimed to have approved the pathway in a meeting that included the vote of Ernst. However, the Board also stated that Ernst was not obligated to obtain Board approval for his improvements because it was not needed unless they lie or cross over into Lot A. Plaintiffs claim that the LLG governing documents make no distinction regarding the Board's obligations as to Lot A and pathway easements. Moreover, they contend the location of the pathway work took place in the northern portion of Lot A.

On March 11, 2024, Ernst constructed an approximate 13' fence entirely within the 937 Lakeview pathway easement on his property. When Plaintiffs demanded that it be removed, the Association and Ernst responded that Plaintiffs do not have a pathway easement over Ernst's 937 Lakeview lot, even though Plaintiffs claim that the 1947 Map of LLG and the governing documents provide for such an easement.

Plaintiffs further bring this action alleging that Ernst's landscaping blocks their view of the lake. The vegetation on Ernst's property exceeds ten feet in some places, such that the view of the lake they had when they purchased the property is now substantially blocked. Plaintiffs requested that Ernst trim and remove the vegetation and that the Association enforce the CC&Rs to trim and remove the vegetation. Plaintiffs also discovered that Ernst intends on subdividing and constructing two new residential units at 3865 Jefferson that will further impede and obstruct Plaintiffs' view of the lake, which violates the CC&Rs and other governing documents.

Although the applicable CC&Rs at the time were the Second Amended CC&Rs ("2A CC&Rs"), the Board subsequently proceeded to modify the CC&Rs. Plaintiffs claim the Association attempted to delete and/or change the CC&Rs that Plaintiffs were attempting to enforce after they filed their Complaint to eliminate Plaintiffs' rights.

The FAC and FSC allege six causes of action: (1) Declaratory Relief; (2) Breach of Governing Documents; (3) Breach of Fiduciary Duty; (4) Negligence; (5) Negligence Per Se; and (6) Private Nuisance.

Defendants seek summary judgment to the FAC and FSC or, in the alternative, summary adjudication to each cause of action as well as to damages.

2. Legal Standard

The pleadings play a key role in a summary judgment motion by framing the outer measure of materiality in a summary judgment proceeding. (*Hutton v. Fidelity National Title Co.* (2013) 213 Cal.App.4th 486, 493.) Thus, the first step in analyzing a summary judgment motion is identifying the issues framed by the pleadings since it is these allegations to which the motion must respond. (*Ibid.*) The second step is whether the moving party's showing establishes facts that negate the claim and justify a judgment in the moving party's favor. (*Id.*, at 493-494.) If this second step is

met, then the third and final step is to determine whether the opposition demonstrates a triable issue of material fact. (*Id.* at 494.)

For purposes of a summary judgment or summary adjudication motion, the defendant has met the initial burden of showing that a cause of action has no merit if the party has shown that one or more elements cannot be established, or there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) Once the defendant has met this burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (*Ibid.*)

For a defendant to meet the initial burden, it may present affirmative evidence negating as a matter of law an essential element of plaintiff's claim. (*Guz v. Bechtel Nat., Inc.* (2000) 24 Cal.4th 317, 334.) Another way for a defendant to meet its initial burden is to show that an essential element of plaintiff's claim cannot be established. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854.) To rely on an absence of evidence, the defendant must show that plaintiff does not possess and cannot reasonably obtain needed evidence. (*Ibid.*) Such evidence usually consists of admissions by plaintiff following sufficient discovery to show plaintiff has discovered nothing to support an essential element of the cause of action. (*Id.* at p. 855.) The defendant cannot just point out through argument that plaintiff does not possess and cannot reasonably obtain needed evidence, but defendant must present evidence. (*Ibid.*)

3. First Cause of Action for Declaratory Relief

Defendants' Motion to the First Cause of Action is DENIED.

"Any person interested under a written instrument, excluding a will or a trust, or under a contract, or who desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property...may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties in the premises, including a determination of any question of construction or validity arising under the instrument or contract." (Code Civ. Proc., § 1060.)

Defendants argue that this claim fails as a matter of law because: (1) Plaintiffs have no right to a view as a matter of law, (2) Plaintiffs have no authority to require improvements to Ernst's property, and (3) the Association's decision to install pathways, determine that Ernst's vegetation and design plans do not violate the CC&Rs, and adoption of the amended CC&Rs, Policy for Lynda Lake Pathways and Easements and Enforcement Policy and Schedule of Fines, and determine that Plaintiffs violated CC&Rs 3.6 are protected by the Business Judgment Rule.

However, Plaintiffs correctly point out that Defendants fail to meet their initial burden to this cause of action because Defendants' arguments do not completely dispose of this cause of action even assuming they meet their burden as to the issues raised by them. (Plaintiffs' Opposition, pp. 14:13-15:9.) The FSC alleges an actual controversy exists to 11 different matters. (FSC, ¶ 122.)

One of these alleged controversies is Defendants' obligation to engage in the interactive process and reasonably accommodate and render Lot A and pathway easements safe and usable for Plaintiffs and other disabled persons pursuant to FEHA, FHA and other law. (*Ibid.*) As discussed above, the pleading frames the issues that Defendants must address in seeking summary judgment. (See *Hutton, supra*, 213 Cal.App.4th at p. 493.) None of Defendants' arguments address this alleged controversy. As such, the court does not need to reach Defendants' arguments to this cause of action because Defendants fail to meet their initial burden by addressing all the allegations pleaded in support of this cause of action.

4. Second Cause of Action for Breach of Governing Documents

Defendants' Motion to the Second Cause of Action is DENIED.

Defendant Ernst

Defendants argue that Plaintiffs cannot establish any breach by Ernst of the CC&Rs.

The FSC alleges that Ernst breached the Association's CC&Rs and other governing documents by, among other things, failing to trim vegetation blocking Plaintiffs' view, proceeding or attempting to proceed with a subdivision at 3865 Jefferson/937 Lakeview, undergoing 3865 Jefferson and 937 Lakeview pathway easement improvements, constructing fences, driveway and other obstructions within pathway easements and Lot A and prohibiting Plaintiffs' access to and use of the pathway easement on 937 Lakeview contrary to the CC&Rs and other governing documents and applicable law. (FSC, ¶ 131.)

Defendants argue that Plaintiffs cannot establish any breach by Ernst's proposed subdivision of his property because the CC&Rs allow him to subdivide his property. The CC&Rs provide that the eleven original lots may be subdivided one time so long as no more than one additional lot is created. (DSSUMF no. 56.) Ernst's property is an original lot that has not previously been subdivided. (DSSUMF no. 57.)

However, Plaintiffs raise a triable issue of material fact as to whether Ernst's subdivision of his property violates section 3.14 of the CC&Rs. The FSC alleges that the subdivision of two residential units on Ernst's property will further impede and obstruct Plaintiffs' view of Lynda Lake. (FSC, ¶¶ 45-46.) Prior to amendment, section 3.14 of the CC&Rs stated:

3.14 All new structures and landscaping on any Lot shall be sited, constructed or planted in a way which, as much as possible, will minimize the blockage of the present view of the Lake Lot of any Owner. Any present or future Owner who applies for an exterior building permit from any governmental agency for any construction or landscaping improvements must provide written notice of the application together with a copy of the proposed design, site location and the elevations by mail or personal delivery to every other Owner not less than fifteen (15) days prior to filing the application.

(DSSUMF no. 42; Plaintiffs' Response to DSSUMF no. 42.) Plaintiffs claim that the proposed new structure on Ernst's property, Parcel A, includes a home with a second story on the north side that will substantially block Plaintiffs' present lake view and would be minimized if constructed on the southern side. (PAMF no. 11.) As such, Plaintiff raises a triable issue of material fact as to Ernst's violation of section 3.14.

As a result, the court does not reach Defendants' remaining arguments as to the other alleged breaches by Ernst.

Defendant Association

Defendants also argue that Plaintiffs cannot establish any breach by the Association of the CC&Rs.

The FAC alleges that the Association, by and through its Board, has breached the Association's governing documents as provided herein and by, among other things, failing or refusing to survey, repair, maintain, improve and remove Ernst's encroachments and obstructions from Lot A and pathway easements, prohibiting Ernst's obstruction of Plaintiffs' 3875 Jefferson view, prohibiting Ernst's pathway improvements' allowing Ernst's blockage of Plaintiffs' access to and use of the pathway easement on 937 Lakeview and failing to reasonably accommodate Sung Sim's disability by, among other things, pathway easements safe and usable for Plaintiffs pursuant to the CC&Rs and other governing documents and applicable law, and determining that Ernst's obstruction of Plaintiffs' view and that Ernst's spite vegetation and design plan for the construction of two new houses on subdivided 3865 Jefferson do not violate section 3.14 of the CC&Rs or other CC&Rs and determining that Plaintiffs' common boundary fence and gate violate section 3.6 of the CC&Rs or other CC&Rs. (FSC, ¶ 131.)

Defendants contend that they did not breach the CC&Rs by failing to remove Ernst's encroachments and obstructions from Lot A because the large majority of the perimeter of Lynda Lake already had some manner of pathway, including paver stone pathways. (DSSUMF nos. 21-22.) The portion of the pathway installed in 2023 were the only portions that had yet to be improved. (DSSUMF no. 23.) Defendants assert that the Board's decision to allow installation of the pathway was consistent with the Board's prior decisions regarding improvements to Lot A.

Defendants fail to meet their initial burden as to this alleged breach as this argument does not show that the Association did not breach the CC&Rs regarding the pathway. Moreover, as Defendants expressly acknowledge, the alleged breach is failing to remove Ernst's encroachments and obstructions from Lot A. Therefore, Defendants' contention that other pathways already existed is insufficient to meet its initial burden on this issue.

Furthermore, Plaintiffs raise a triable issue of material fact as to whether the Association breached the CC&Rs regarding the pathway by failing to comply with FEHA for common use areas. (See *Auburn Woods I Homeowners Assn. v. Fair Employment & Housing Comm.* (2004) 121 Cal.App.4th 1578, 1592.) FEHA common use areas include passageways among and between buildings, and recreational areas. (Cal. Code Regs, tit. 2, § 12005(g).) Sections 2.1A of

the CC&Rs provides that the Association shall maintain, repair, replace (when necessary), restore, operate and manage the Lake Lot and Easements and all facilities, improvements, equipment and landscaping thereon, and all property that may be acquired by the Association. (PAMF no. 25.) Section 2.1F of the CC&Rs further provides that the Association shall maintain and operate the Lake Lot and Easements in accordance with all applicable municipal, state, and federal laws, statutes and ordinances, as the case may be. (PAMF no. 26.) The Association shall also, as a separate and distinct responsibility, take reasonable action to require that third parties (including Owners and their guests) utilize the Lake Lot and Easements in accordance with the aforementioned laws, and take reasonable action to correct such violations when it becomes aware of any violation. (*Ibid.*) Plaintiffs requested reasonable accommodations with the pathway for Park's disability, but the Board did not assess any reasonable accommodations and claimed that it did not operate or manage the pathway easements. (PAMF no. 27-39.) Thus, Plaintiff raises a triable issue of material fact as to whether the Association breached sections 2.1A and 2.1F.

Defendants further contend that any breach of the CC&Rs is protected by the Business Judgment Rule. (*See Lamden v. La Jolla Shores Clubdominium Homeowners Association* (1999) 21 Cal.4th 249.) In *Lamden*, the California Supreme Court found that "[w]here a duly constituted community association board, upon reasonable investigation, in good faith and with regard for the best interests of the community association and its members, exercises discretion within the scope of its authority under relevant statutes, covenants and restrictions to select among means for discharging an obligation to maintain and repair a development's common areas, courts should defer to the board's authority and presumed expertise." (*Id.*, at p. 253.) In order for the Court to determine whether the Association's actions were taken in good faith and with regard for the best interest of the Association and its members though, evidence needs to be provided. Defendants did not present any evidence with their moving papers that this decision not to grant Plaintiffs' proposed reasonable accommodations regarding the pathway was made upon reasonable investigation, in good faith and with regards for the best interests of the community, or that this decision involved discretion. Although Defendants provide the supplemental declaration of David Alvarez with their reply claiming the Association engaged in an interactive process with Plaintiffs throughout 2023 (Supp. Alvarez Decl.), a reply shall not include any new evidentiary matter and therefore the court does not consider it. (Code Civ. Proc., § 437c, subd. (b)(4) [reply shall not include any new evidentiary matter].) Defendants therefore fail to show that the Business Judgment Rule operates as a complete defense to this cause of action against the Association.

5. Third Cause of Action for Breach of Fiduciary Duty

The Motion to the Third Cause of Action is DENIED. This cause of action is alleged only against the Association.

The Third Cause of Action alleges the Association, through its Board, was obligated to comply with the CC&Rs and to enforce them. (FSC, ¶ 137.) Plaintiffs allege the same breach in support of this cause of action as alleged in the Second Cause of Action regarding refusing to engage in the interactive process and reasonably accommodate and render Lot A and pathway easements

safe and usable for Plaintiffs and other disabled persons pursuant to FEHA, FHA and other law. (FSC, ¶ 138.) For the same reasons the court found a triable issue of material fact as to the Association's breach for the Second Cause of Action, the court finds that a triable issue of material fact also exists as to the alleged breach of fiduciary duty by the Association for this cause of action.

Defendants also argue Plaintiff cannot establish any damages. Defendants rely on Plaintiffs' discovery responses, which they contend fail to provide any facts to support damages. (DSSUMF nos. 53-54.) However, as discussed above, for a defendant to rely on plaintiff's absence of evidence to meet defendant's initial burden, defendant must show that plaintiff does not possess and cannot reasonably obtain needed evidence. (*Aguilar, supra*, 25 Cal.4th at p. 854.) Such evidence usually consists of admissions by plaintiff following sufficient discovery to show plaintiff has discovered nothing to support an essential element of the cause of action. (*Id.* at p. 855.) These responses do not establish that Plaintiffs cannot reasonably obtain evidence to support damages. (DSSUMF nos. 53-54.) Instead, they show only that Moskewicz did not know the amount of damages at the time he served his responses. (*Ibid.*) Further, Defendants only cite to Moskewicz's responses to the Special Interrogatories. (Austrian Decl., ¶ 4, Exh. C.) Defendants do not provide similar discovery responses by Park or cite to any evidence to support an absence of evidence as to her damages.

In addition, the Third Cause of Action alleges that Plaintiffs incurred damages to their view and ability to use Lot A and pathway easements, diminution in value to their property, survey costs and emotional distress. (FSC, ¶ 139.) Defendants acknowledge that Plaintiffs state they paid \$9,260 for a survey of the development. (DSSUMF no. 55.) Defendants fail to explain why these damages are insufficient to support this cause of action. Thus, the court finds that Defendants fail to meet their initial burden of showing that Plaintiffs cannot establish any damages.

Finally, even if Defendants met their initial burden, Plaintiffs provide evidence sufficient to raise a triable issue of material fact as to their damages. (Plaintiffs' Responses to DSSUMF nos. 53-54, PAMF no. 65.)

6. Fourth Cause of Action for Negligence

Defendants' Motion to the Fourth Cause of Action is DENIED.

In order to state a cause of action for negligence, a plaintiff must show: (1) the defendant owed plaintiff a legal duty; (2) the defendant breached that duty; (3) the breach proximately or legally caused; (4) plaintiff's damages or injuries. (*Thomas v. Stenberg* (2012) 206 Cal.App.4th 654, 662.)

Defendants argue that the breaches for this negligence claim are the same as alleged in Plaintiffs' Second Cause of Action, and therefore Defendants incorporate the same arguments. As discussed above in the Second Cause of Action, the court finds that a triable issue of material fact exists as to whether Defendants breached the governing documents. Accordingly, a triable issue of material fact also exists to this cause of action.

7. Fifth Cause of Action for Negligence Per Se

Defendants' Motion to the Fifth Cause of Action is DENIED.

"Under the doctrine of negligence per se, negligence will be presumed if: (1) a person violated a statute or regulation, (2) that violation injured another person or their property, (3) the injury was of a type the statute or regulation was designed to prevent, and (4) the person or property injured was of the class the statute or regulation was designed to protect." (*Mize v. Mentor Worldwide LLC* (2020) 51 Cal.App.5th 850, 865.)

The FSC alleges negligence per se based on Civil Code section 841.4, which provides that any fence or other structure that exceeds 10 feet in height maliciously erected or maintained to annoy an occupant of an adjoining property is a private nuisance. (FSC, ¶¶ 148-150.) Ernst's vegetation exceeds 10 feet in some places on his 3865 Jefferson property, and Plaintiffs claim that he grew and maintained the vegetation to substantially annoy Plaintiffs and block their view of Lot A. (FSC, ¶ 150.) Ernst had not overgrown his offending vegetation prior to Plaintiffs moving into their property and he failed to respond to their request to remove or cut it. (*Ibid.*)

Civil Code section 841.4, titled "Spite fences," states:

Any fence or other structure in the nature of a fence unnecessarily exceeding 10 feet in height maliciously erected or maintained for the purpose of annoying the owner or occupant of adjoining property is a private nuisance. Any owner or occupant of adjoining property injured either in his comfort or the enjoyment of his estate by such nuisance may enforce the remedies against its continuance prescribed in Title 3, Part 3, Division 4 of this code.

(Civ. Code, § 841.4.)

Defendants argue that Plaintiffs lack any evidence to show that Ernst maliciously grew or maintained vegetation on his property. In support, Defendants cite to DSSUMF no. 51. (Defendants' Memorandum, pp. 22:13-19.) However, Defendants do not include DSSUMF no. 51 in seeking summary adjudication to this cause of action. (See DSSUMF, Issue 5.) Thus, Defendants did not include it as a material fact.

Even if the court considers this fact though, Defendants' cited evidence does not show Plaintiffs lack evidence to support malice. Defendants once again rely on Plaintiffs' absence of evidence as to malice, citing to Plaintiffs' responses to the Association's request for facts to support Plaintiffs' cause of action for **nuisance**. (DSSUMF no. 51.) Special Interrogatory no. 16 asks to state all facts to support the Sixth Cause of Action for Private Nuisance. (Defendants' Compendium of Evidence, Exh. C.) It does not ask for all facts to support this cause of action for negligence per se. (*Ibid.*) Further, Defendants provide only the interrogatory response by Moskewicz. (*Ibid.*) Defendants present no evidence that Park responded similarly to

interrogatories or that she lacks any evidence as to malice. Defendants therefore fail to meet their initial burden of showing Plaintiffs lack any evidence as to malice.

8. Sixth Cause of Action for Private Nuisance

Defendants' Motion to the Sixth Cause of Action is DENIED.

In order to state a cause of action for private nuisance, a plaintiff must allege: (1) interference with the plaintiff's use and enjoyment of the property, (2) that the invasion of the plaintiff's interest in the use and enjoyment of the land was substantial, and (3) that the interference with the protected interest is also unreasonable. (*San Diego Gas & Electric Co. v. Superior Court* (1996) 13 Cal.4th 893, 937.)

The FSC alleges that Ernst and the Association have interfered with Plaintiffs' use and enjoyment of their 3875 Jefferson lot and the Lynda Lake Gardens pathway easement and Lot A as provided herein and by, contrary to CC&Rs, growing or allowing vegetation to be grown on Ernst's 3865 Jefferson lot that substantially impedes or blocks Plaintiffs view of the Lot A from their 3875 Jefferson lot, constructing or placing driveways, fences and other obstructions and constructing or allowing to be constructed pathways within Lot A, and failing to maintain, operate and manage pathway easements including, among other things, keeping the pathway easement across Ernst's 3865 Jefferson and 937 Lakeview properties clear of obstructions. (FSC, ¶ 154.)

Defendants argue that the private nuisance claim relates to the vegetation growing on his property. (DSSUMF no. 51.) Defendants contend that the question of an otherwise legal structure on a neighboring property impeding a view has already been addressed by California courts and held that an unpleasant appearance of neighboring property in and of itself does not give rise to the level of nuisance. (See *Oliver v. AT&T Wireless Servs.* (1999) 76 Cal.App.4th 521; see also *Posey v. Leavitt* (1991) 229 Cal.App.3d 1236.) As a matter of law, Defendants therefore claim that any vegetation on Ernst's property cannot be a nuisance.

However, Defendants rely on Moskewicz's responses to special interrogatories asking him to state all facts in support of his Sixth Cause of Action for Private Nuisance in the Complaint. (DSSUMF no. 51.) While Moskewicz responded that the vegetation blocking Plaintiffs' view constituted a private nuisance, he also stated that:

In approximately late 2021, Responding Party and Responding Party's spouse learned that Ernst intends on subdividing and constructing two new residential units at 3865 Jefferson that will further impede and obstruct Responding Party and Responding Party's spouse's view of Lynda Lake and other parts of Lynda Lake Gardens in violation of SARD Article 3.14 and other governing documents.

(Defendants' Compendium of Evidence, Exh. C.) Defendants fail to address this part of Moskewicz's response regarding a private nuisance. Therefore, the court does not reach

Defendants' argument regarding whether the vegetation growing on Ernst's property constitutes a nuisance because Defendants fail to address the entirety of Moskewicz's allegations. In other words, Defendants fail to meet their initial burden.

In addition, as previously discussed, Defendants fail to show that Park provided a similar response or any other evidence regarding her nuisance claim. Therefore, Defendants also fail to meet their initial burden as to Park.

Defendants also once again argue that Plaintiffs failed to state any facts to support their claim for damages based on diminution in value. (DSSUMF no. 53.) As already discussed in the Third Cause of Action for Breach of Fiduciary Duty, Defendants fail to meet their initial burden as the cited discovery response does not show that Plaintiffs cannot reasonably obtain evidence to support damages. Moreover, Plaintiffs proffer sufficient evidence to raise a triable issue of material fact as to their damages. (Plaintiffs' Responses to DSSUMF nos. 53-54, PAMF no. 65.)

9. Damages

Procedurally, the court finds it is unclear what Defendants are seeking as Defendants purport to seek both summary adjudication and summary judgment in Issue No. 7. Defendants state: "Issue No. 7: Defendants are entitled to summary adjudication as to each cause of action, and therefore summary judgment, because Plaintiffs are entirely unable to show damages." (Defendants' Amended Notice of Motion.) However, Defendants' Memorandum states "Five of Plaintiffs' causes of action have an essential element of damages. (*Haley supra* 153 Cal.App. 863 at 871-72 (breach of governing documents); *Pellegrini v. Weiss* (2008) 165 Cal.App.4th 515, 524 (breach of fiduciary duty); *Thomas v. Stenberg* (2012) 206 Cal.App.4th 654 (negligence and negligence per se); *Today's IV, supra* (2022) 83 Cal.App.5th at 1176. (private nuisance).)" (Defendants' Memorandum, p. 24:17-20.) Thus, Defendants do not contend that damages are an essential element of the First Cause of Action for Declaratory Relief. As such, Defendant are not entitled to summary judgment based on this damages argument.

Notwithstanding that it is unclear what Defendants are seeking, this issue appears procedurally improper. A party may only move for summary adjudication to a claim for punitive damages. (See Code Civ. Proc., § 437c, subd. (f)(1).) "A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, ***one or more claims for damages***, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, ***that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code***, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. (*Ibid.* (emphasis added).) "Notwithstanding subdivision (f), a party may move for summary adjudication of a legal issue or a claim for damages other than punitive damages that does not completely dispose of a cause of action, affirmative defense, or issue of duty pursuant to this subdivision." (Code Civ. Proc., § 437c, subd. (t).) Subdivision (t) requires a joint stipulation and approval by the court. (*Ibid.*) Therefore, while Defendants may argue that Plaintiff cannot establish the element of damages in separately seeking summary adjudication to a specific cause of action (which the court has already

addressed above), Defendants cannot separately seek summary adjudication solely as to damages. As framed in Issue no. 7, Defendants' summary adjudication of damages is therefore improper.

Notwithstanding this procedural defect, Defendants once again rely on the same evidence to support that Plaintiffs cannot establish damages as previously argued in the Third Cause of Action and Sixth Cause of Action. (See DSSUMF nos. 53-56.) Defendants again rely on discovery responses to argue Plaintiffs lack any evidence of damages. As already discussed above, Defendants fail to meet their initial burden because Moskewicz's discovery response does not show he will not be able to obtain evidence as to damages. Defendants also have not provided a lack of evidence by Park as they have not provided her discovery responses or any other evidence to show that she lacks evidence as to damages. Furthermore, Plaintiffs raise a triable issue of material fact as to whether they suffered any damages. (Plaintiffs' Responses to DSSUMF nos. 53-54, PAMF no. 65.)

10. Evidentiary Objections

Plaintiffs filed objections to Defendants' material facts in their separate statement rather than Defendants' evidence. As such, the court DECLINES to rule on them for failure to comply with the rules of court. (See Cal. Rules of Court, rule 3.1352, 3.1354 [providing for a party to make objections to evidence on a summary judgment motion].)

Defendants also filed objections to Plaintiffs' additional material facts in their separate statement rather than Plaintiffs' evidence. (Defendants' Objections nos. 1-17.) The court DECLINES to rule on them for failure to comply with the rules of court. (See Cal. Rules of Court, rule 3.1352, 3.1354 [providing for a party to make objections to evidence on a summary judgment motion].)

Defendants' objections nos. 18-25 are OVERRULED.

11. Requests for Judicial Notice

Defendants' and Plaintiffs' Requests for Judicial Notice are GRANTED.

Conclusion

Defendants' Motion is DENIED as to both summary judgment and summary adjudication.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiffs shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 3

24-CIV-05601

CORRINA RENTERIA AQUINO VS. DAVID ANDREAS FUCHS, ET AL.

CORRINA RENTERIA AQUINO
DAVID ANDREAS FUCHSPETER W. DANIEL
DEBORAH A. STEVENS

MOTION FOR LEAVE TO FILE LATE COMPULSORY CROSS-COMPLAINT

TENTATIVE RULING:

The court GRANTS defendant David Fuch's motion to file a cross complaint.

Code of Civil Procedure Section 428.10, subdivision (b) provides that a party against whom a cause of action has been asserted may file a cross-complaint setting forth: "(b) Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him." (Code Civ. Proc. § 428.10, subd. (b).)

"If a party does not file a cross-complaint against its opponent "before or at the same time as the answer" (Code Civ. Proc., § 428.50, subd. (a)), that party "shall obtain leave of court" to file one (*id.*, subd. (c)). (See 5 Witkin, *Cal. Procedure* (5th ed. 2008) Pleading, § 1168, pp. 599-601.)" (*Department of Finance v. City of Merced* (2019) 33 Cal.App.5th 286, 295.) "Leave may be granted in the interest of justice at any time during the course of the action." (Code Civ. Proc. § 428.50, subd. (c).) Similarly,

[a] policy of liberal construction of section 426.50 to avoid forfeiture of causes of action is imposed on the trial court. A motion to file a cross-complaint at any time during the course of the action must be granted unless bad faith of the moving party is demonstrated where forfeiture would otherwise result. Factors such as oversight, inadvertence, neglect, mistake or other cause, are insufficient grounds to deny the motion unless accompanied by bad faith.

(*Silver Organizations Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 98–99.)

Plaintiff argues that defendant is acting in bad faith because he knew of the cause of action much earlier than the date stated in defendant's declaration. The court does not find any bad faith by defendant. While defendant may have known of facts earlier than he asserts, that factual finding is not something that can be decided on a motion for leave to file a cross-complaint or probably even on a demurrer. It is an extensive factual determination. Instead the court is guided by the policy that cases should be decided on the merits and that this cross-complaint is compulsory, meaning that the claims are lost if the court denies defendant the right to assert the cross-

complaint. Plaintiff has demonstrated no prejudice and trial has not been set. The court expects defendant to voluntarily sit for another deposition (limited to the issues in the cross-complaint which have not been the subject of testimony in the first deposition). The court finds that the interests of justice will be served by allowing this cross-complaint.

Defendant shall file the proposed cross-complaint attached as Exhibit 2 to the declaration of Maria-Vittoria G. Carminati within ten days of notice of entry of order. It is not deemed filed.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for defendant shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 4

24-CLJ-06163

LAWYERS TITLE COMPANY VS. PAUL NARCISSE, ET AL.

LAWYERS TITLE COMPANY
PAUL NARCISSE

JOSETTE D JOHNSON

HEARING TO DETERMINE HOW TO DISTRIBUTE THE DEPOSITED FUNDS

TENTATIVE RULING:

The Court holds its repeatedly noticed Hearing to Determine How to Distribute the Deposited Funds.

Background

According to the allegations in the complaint, Plaintiff believes that Defendants Paul and Rina Narcisse were the buyers and Defendants David Stariha and Bernadette Romero were the sellers in a real estate transaction concerning realty located at 5631 Cloverdale Road, Pescadero, California 94060, related to which it held \$17,500.00 (the “Funds”) in escrow. Since Plaintiff received no mutual instructions as to the disposition of the Funds, it could not determine who should receive them and brought this action, claiming no interest therein beyond its attorney’s fees and costs incurred in doing so.

The Court ordered that Plaintiff be allowed to deposit the Funds with the Court, and that they be placed in an interest-bearing account (Code Civ. Proc., § 386.1). (Order, filed on October 4, 2024.)

Plaintiff requested and the Clerk entered defaults against Defendants Narcisse on October 24, 2025. At the hearing on Plaintiff’s Motion for Order Discharging Stakeholder from Liability; and Award of Attorneys Fees and Costs, which no party attended, the Court adopted its Tentative Ruling granting the motion, and set the instant hearing as follows:

Additionally, the court sets a hearing to determine how to distribute the deposited funds for September 22, 2026 at 2:00 p.m. in Department 4. Pursuant to Civil Code section 2924j, subdivision (d), the clerk shall serve written notice of the hearing by first-class mail on all claimants identified in the trustee's declaration at the addresses specified therein. The court will consider all claims filed at least 15 days before this hearing.

(Minute Order, June 23, 2026 (the “Minute Order”).) The next day, the Court served notice of the Minute Order and an Affidavit of Service upon Plaintiff’s counsel at their email addresses of record, upon Defendants Stariha and Romero at their addresses of record, and despite their having defaulted (Code Civ. Proc., § 1014 (“Where a defendant has not appeared, service of

notice or papers need not be made upon the defendant.”)), upon Defendants Narcisse who have no addresses of record at the address upon which Plaintiff declared service of the Summons, showing each of these Defendants’ signed Acknowledgements of Receipt (Proofs of Service of Summons, filed on November 25, 2024, and January 13, 2025). (Affidavit of Service, filed on June 24, 2026.) Also on that date, the Court separately served notice of the instant hearing upon the same parties in the same manner. (Clerk’s Notice of Hearing, filed on June 24, 2026.) The Court further signed on July 31, 2026, and filed on August 5, 2026, the formal Order adopting the Tentative Ruling of the Minute Order (Order, filed on August 5, 2026), as well as an Affidavit of Service of the formal Order upon Plaintiff’s counsel and upon Defendants Stariha and Romero (Affidavit of Service, filed on August 5, 2026). The Court further directed the Clerk to pay to Plaintiff \$10,066.90 from the Funds deposited with the Court (Order, signed on September 15, 2026, and filed on September 17, 2026), and served this Order as well as a corresponding Affidavit of Service upon Plaintiff’s counsel and upon Defendants Stariha and Romero (Affidavit of Service, filed on September 17, 2026). Although the deadline set by the Court fell on September 7, 2026, no claim has been filed.

Governing Law

In pertinent parts, the governing statute provides that:

Except as otherwise provided by law, any money, excluding restitution to victims, that has been deposited with a superior court ... in a court bank account or in a court trust account in a county treasury, that remains unclaimed for three years shall become the property of the superior court if, after published notice pursuant to this section, the money is not claimed or no verified complaint is filed and served.

At any time after the expiration of the three-year period specified in subdivision (a), the executive officer of the superior court may cause a notice to be published once a week for two successive weeks in a newspaper of general circulation published in the county in which the court is located. The notice shall state the amount of money, the fund in which it is held, and that it is proposed that the money will become the property of the court on a designated date not less than 45 days nor more than 60 days after the first publication of the notice.

Before or after publication, a party of interest may file a claim with the court executive officer that shall include the claimant’s name, address, amount of claim, the grounds on which the claim is founded, and any other information that may be required by the court executive officer. The claim shall be filed before the designated date on which unclaimed money becomes the property of the court as provided under subdivision (b), and the executive officer shall accept or reject that claim.

If the superior court executive officer rejects the claim, or takes no action on the claim within 30 days after it is filed, the party that submitted the claim may file a verified complaint seeking to recover all, or a specified part, of the money in the

court in the county in which the notice is published. The copy of the complaint and summons shall be served on the court executive officer. The court executive officer shall withhold the release of the portion of unclaimed money for which a court action has been filed as provided in this section until the court renders a decision or the claim is settled. Any portion of the unclaimed money not covered by the verified complaint shall become the property of the court if no other claim or verified complaint has been filed regarding it within the time specified in this section. If the party that submitted the claim does not file a verified complaint within 30 days after the date that the court mailed notice that the claim was rejected or within 60 days after the claim was filed, the money shall become the property of the court.

(Gov. Code, § 68084.1, subds. (a)-(d).)

Result

Accordingly, pursuant to Government Code section 68084.1, after the expiration of the three-year period specified in its subdivision (a), the Court will publish the notice provided thereby. The notice will propose that the Funds will become the property of the Court on a date designated therein, and provide information as to how to file a claim therefor, as described on its website at: <https://sanmateo.courts.ca.gov/general-information/escheatment>.

The clerk of the court shall serve the order on the Accounting Division of this Court.

If the tentative ruling is uncontested, it shall become the order of the Court. The Court will prepare a written order.

2:00 PM

LINE 5

25-CIV-03590

ALICIA WOODFALL-JONES VS. MATT FABRY, ET AL.

ALICIA WOODFALL-JONES

MATT FABRY

ARIEL STRAUSS

ROBERT CARROLL MAY

DEMURRER TO RESPONDENTS' ANSWER

TENTATIVE RULING:

In this case, Petitioner Alicia Woodfall-Jones seeks a writ of mandate and declaratory relief related to permit granted for a wireless service facility in the City of San Mateo. Respondents are the City of San Mateo, by and through the City Council of the City of San Mateo; Matt Fabry; and the Sustainability & Infrastructure Commission of the City of San Mateo. Real Parties in Interest are Crown Castle Fiber LLC and Verizon Wireless.

Here, Petitioner demurs to Affirmative Defenses No. 2, 4-8, and 11-14 in Respondents' Answer. Respondents have not opposed the demurrer.

Courts have construed the failure to oppose a motion as having an abandonment of the claims. (See *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20 ["Plaintiff did not oppose the County's [motion] to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiff to have abandoned the issue."]; *Bell v. Am. Title Ins. Co.* (1991) 226 Cal.App.3d 1589, 1602 [failure to oppose a motion results in a waiver on appeal of any objection to the resulting order.]) This Court believes, especially when the issue is one of law, "that the integrity of the judicial process requires ... [the Court] to subject every motion to review before granting it." (*California Judge's Benchbook: Civil Proceedings Before Trial* § 6.22 (Thomson Reuters Mar. 2026 update).) Therefore, the Court has substantively reviewed Petitioner's demurrer.

Petitioner's demurrer is SUSTAINED as to Affirmative Defenses No. 2, 4-8, and 12-14, with leave to amend, and OVERRULED as to Affirmative Defense No. 11.

LEGAL STANDARD

A party may demur to an answer on three separate bases: (1) failure to state facts sufficient to constitute a defense; (2) uncertainty; and (3) failure to state whether a contract alleged in the answer is written or oral. (Code Civ. Proc. § 430.20.)

An Answer must contain a "statement of any new matter constituting a defense." (Code Civ. Proc., § 431.30, subd. (b)(2).) An affirmative defense is a "new matter" that is something "not put

in issue by the plaintiff” and must be pled with the necessary facts. (*Dept. of Finance v. City of Merced* (2019) 33 Cal. App. 5th 286, 294.)

An Answering party is subject to the same “ultimate facts” pleading standard as is required for pleading a complaint. (*See FPI Develop., Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384; *South Shore Land Co. v Petersen* (1964) 226 Cal.App.2d 725, 732; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) Thus, like a demurrer to a complaint, a demurrer to an answer tests affirmative defenses for facial legal sufficiency, not whether the defense will ultimately prevail. (*Nolte v. Cedars-Sinai Medical Center* (2015) 236 Cal.App.4th 1401, 1406.) However, “affirmative defenses [that] consist of legal conclusions [will] survive neither a demurrer nor a motion for judgment on the pleadings.” (*Westly v. Board of Administration* (2003) 105 Cal.App.4th 1095, 1118.)

In determining whether an answer states facts sufficient to constitute a defense, courts accept the factual allegations of the answer and the complaint and any matters of which judicial notice can be taken but disregards contentions, deductions, and conclusions. (Code of Civ. Proc., § 430.30, subd. (a); *Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.) The pleading is construed liberally (see Code of Civ. Proc., § 452), and facts that may be inferred from those expressly alleged must also be accepted as true (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.)

While generally, demurrers to answers are disfavored because discovery can obtain the basis for the affirmative defenses (*Cal. Prac. Guide Civ. Pro. Before Trial* § 7.35.1 (TRG June 2026 update)), this case is a writ petition where there is no or limited discovery. Accordingly, the Court addresses the merits of the demurrer.

DISCUSSION

The Court addresses each of the challenged affirmative defenses below, separately.

Second Affirmative Defense: *Respondents allege that Petitioner has a plain, speedy, and adequate remedy at law.*

The Court finds that Respondents fail to provide facts supporting this defense or otherwise explain what alleged remedy is available to Petitioner. Accordingly, Petitioner’s demurrer is SUSTAINED as to this affirmative defense, with leave to amend.

Fourth Affirmative Defense: *Respondents allege that Petitioner is barred in whole or in part from prosecuting the purported causes of action set forth in the Petition by the doctrine of estoppel due to its knowledge, statements, conduct, approval, authorization and/or ratification.*

The Court finds that Respondents fail to provide any facts regarding the “statements, conduct, approval, authorization, and/or ratification” that would allegedly provide a basis for the affirmative defense of estoppel. Accordingly, Petitioner’s demurrer is SUSTAINED as to this affirmative defense, with leave to amend.

Fifth Affirmative Defense: *Respondents allege that Petitioner failed to exhaust requisite remedies and is thereby precluded from proceeding with this matter in Superior Court.*

The Court finds that Respondents fail to provide facts as what administrative remedies Petitioner failed to exhaust. Accordingly, Petitioner's demurrer is SUSTAINED as to this affirmative defense, with leave to amend.

Sixth Affirmative Defense: *Respondents allege that Petitioner's claims are barred because Petitioner has waived any rights to relief asserted in the Petition by its own conduct or inaction.*

The Court finds that Respondents fail to plead facts regarding the "conduct or inaction" by Petitioner that allegedly constitutes a waiver of relief. Accordingly, Petitioner's demurrer is SUSTAINED as to this affirmative defense, with leave to amend.

Seventh Affirmative Defense: *Respondents allege that Petitioner's claims are barred in whole or in part by the doctrine of unclean hands because Petitioner's alleged bases for seeking legal and/or equitable relief were the result of Petitioner's own actions and/or inaction.*

The Court finds that Respondents fail to allege facts regarding Petitioner's actions or inactions supporting an affirmative defense of unclean hands. Accordingly, Petitioner's demurrer is SUSTAINED as to this affirmative defense, with leave to amend.

Eighth Affirmative Defense:

Petitioner explains that the Eighth Affirmative Defense is entitled "Failure to State a Cause of Action" but contains the same text as the Fourth Affirmative Defense and Petitioner objects on the same bases.

Indeed, the Eighth Affirmative Defense is duplicative of the Fourth, which fails to provide any facts regarding the "statements, conduct, approval, authorization, and/or ratification" that would allegedly provide a basis for the affirmative defense of estoppel. Accordingly, Petitioner's demurrer is SUSTAINED as to this affirmative defense, with leave to amend.

Eleventh Affirmative Defense: *The Petition fails to set forth facts that would constitute a basis for an award of costs of suit against the City. To the extent that Petitioner's claim for costs of suit arises under the federal Telecommunications Act, Respondents further allege that Petitioner's claim for costs of suit is not recoverable. See City of Rancho Palos Verdes v. Abrams, 544 U.S. 113, 121 (2005).*

Here, Petitioner argues that there is no legal basis to prevent Petition from recovering costs. Petitioner explains that the default rule in California is that a prevailing party is entitled to costs under Code of Civil Procedure, section 1032. The Telecommunications Act of 1997, 47 U.S. Code § 332(c)(7), limits the authority of states and localities to deny zoning-type applications for "personal wireless service facilities" if the denial would "have the effect of prohibiting the

provision of personal wireless services,” and grants only applicants a federal cause of action when a permit is denied in violation of Section 332. Plaintiffs opposing an approval do not bring a cause of action under the Telecommunication Act. (*See Drago v. Garment*, 691 F.Supp.2d 490 (S.D.N.Y. 2010).) Petitioner does not raise any claims under the Telecommunications Act. Petitioner argues that Respondent’s cited case, *City of Rancho Palos Verdes v. Abrams*, 544 U.S. 113, 121 (2005) did not involve claims by permit opponents brought under state law and is inapplicable.

The Court disagrees. Like allegations in a complaint, a demurrer tests affirmative defenses for facial legal sufficiency, not whether the defense will ultimately prevail. (*Nolte v. Cedars-Sinai Medical Center* (2015) 236 Cal.App.4th 1401, 1406.) Thus, an affirmative defense need only state a cognizable theory that would defeat or limit relief if the facts bear out. Here, Defendant *conditionally* asserts that costs are not recoverable “[t]o the extent that Petitioner’s claim for costs of suit arises under the federal Telecommunications Act.” The Court acknowledges that the Petition’s causes of action only invoke state statutes. However, whether Petitioner’s claims implicate TCA-governed standards regarding the issuance of wireless service facility permits is a substantive question that cannot be resolved on the face of the pleadings. Respondents’ affirmative defense states a cognizable theory that limits relief, to the extent that any claim for costs arises from the TCA.

Accordingly, Petitioner’s demurrer is OVERRULED as to this affirmative defense.

Twelfth Affirmative Defense: *Respondents assert that the Petition fails to state any claim for relief because Respondents acted in good faith at all material times based on all the relevant facts and circumstances. Also, Respondents acted in an objectively reasonable manner under all the relevant facts and circumstances.*

The Court finds that Respondents fail to allege facts supporting that they acted in good faith and further fail to explain why that would constitute an affirmative defense in this action. Accordingly, Petitioner’s demurrer is SUSTAINED as to this affirmative defense, with leave to amend.

Thirteenth Affirmative Defense: *Respondents assert that Petitioner’s claims are barred under the doctrine of laches.*

The Court finds that Respondents fail to provide facts regarding any allegedly unreasonable delay by Petitioner and prejudice Respondents to support an affirmative defense for laches. Accordingly, Petitioner’s demurrer is SUSTAINED as to this affirmative defense, with leave to amend.

Fourteenth Affirmative Defense: *Respondents assert that the declaratory relief sought by Petitioner is improper because it will not settle Petitioner’s dispute and asks this court to case [sic] judgment on the wisdom of a local ordinance adopted pursuant to powers conferred on the City by the San Mateo City Charter.*

Petitioner argues that this affirmative defense fails offer a legal or factual basis for application to the first two causes of action. Petitioner further argues that this affirmative defense provides no reasoned basis for the characterization that declaratory relief sought by Petitioner “asks this court to case [sic] judgment on the wisdom of a local ordinance.” The declaratory relief does not challenge the City’s ordinance. The City similarly provides no legal support for implicit assertion that declaratory relief is improper in for the purposes requested by Petitioner. To the contrary, Petitioner sites several cases indicating that declaratory relief may be used in the fashion requested by Petitioner. (See Petition, ¶¶162 69.)

The Court agrees. Respondents fail to explain how, specifically, the relief sought is improper and that the declaratory relief sought asks the court to judge the wisdom of a local ordinance. Accordingly, Petitioner’s demurrer is SUSTAINED as to this affirmative defense, with leave to amend.

CONCLUSION

Petitioner’s demurrer is SUSTAINED as to Affirmative Defenses No. 2, 4-8, and 12-14, with leave to amend, and OVERRULED as to Affirmative Defense No. 11.

Respondents may file an amended Answer within ten (10) days of notice of entry of order. (Cal. Rules of Court, rule 3.1320(g); Code Civ. Proc. § 472b.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Petitioner shall prepare a written order consistent with the Court’s ruling for the Court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 6

26-CLJ-02675

WELLS FARGO BANK, N.A. VS. DEBORAH V BURSE

WELLS FARGO BANK, N.A.
DEBORAH V BURSE

EDGAR B LOPEZ
TAIRA G. SCOTT

MOTION FOR SUMMARY JUDGMENT PURSUANT TO CCP 437C

TENTATIVE RULING:

Plaintiff Wells Fargo, N.A.'s Unopposed Motion for Summary Judgment Pursuant to CCP 437c is DENIED WITHOUT PREJUDICE.

As a preliminary matter, notice of the motion, the motion, and its supporting papers were purportedly served by mail to "DEBORAH V BURSE, an individual c/o Taira Scott Esq." at "P.O. Box 8769, Philadelphia, PA 19101." (Jun. 11, 2026 Proof of Service, § 5.) However, Plaintiff Wells Fargo, N.A. ("Wells Fargo") was and is required to serve all papers electronically. (See Cal. Rules of Court, rule 2.251(c)(3); Super. Ct. San Mateo County Local Rules, rule 2.1.7(a)(7).)

Even were service by mail were permitted, there is no indication that the envelope was properly addressed to include Huron Legal Group, P.C., which is part of the address of record of Burse's counsel. (See Apr. 27, 2026 Answer, p. 1.) "Service by mail must be made in strict compliance with the mandates of [Code of Civil Procedure] sections 1013 and 1013a." (*Aquino v. Superior Court* (2021) 73 Cal.App.5th 104, 111.) Even minor technical defects such as omitting the law firm's name from the address render service by mail ineffective, as is the case here. (*Triumph Precision Products, Inc. v. Insurance Co. of North America* (1979) 91 Cal.App.3d 362, 364.)

Therefore, there is no indication notice of the motion was properly served, and a "court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question." (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205.) Accordingly, the motion is denied without prejudice to a renewed motion supported by valid proof of proper service.

If the tentative ruling is uncontested, it shall become the order of the Court without need for a formal order.

2:00 PM

LINE 7

26-UDL-00812

ZAHER DAHBOUR VS. AHMAD SULYMAN

ZAHER DAHBOUR
AHMAD SULYMAN

PRO SE

MOTION TO VACATE DEFAULT JUDGMENT

TENTATIVE RULING:

The court DENIES the unopposed motion for relief for default.

First, the court denies the motion for lack of sufficient notice of the hearing. The proof of service states the moving papers were personally served on plaintiff on September 2, 2026. The hearing is on September 22, 2026, which is less than the 16 court days' notice required by Code of Civil Procedure section 1005.

Second, the notice of motion indicates defendant seeks relief pursuant to Code of Civil Procedure section 473.5. That statute requires a motion for relief to be accompanied by an affidavit or declaration showing that defendant's lack of actual notice was not caused by his avoidance of service or inexcusable neglect. Defendant did not file a declaration with his motion. Moreover, he makes no arguments regarding relief under Code of Civil Procedure section 473.5. On September 15, 2026, defendant filed a declaration in support of an unidentified motion hearing. The declaration describes alleged threats and harassment directed at defendant by plaintiff. It does not address service of the summons and complaint or defendant's actual notice of this action. Furthermore, there is no proof that it was served on plaintiff

Third, to the extent the motion could be construed to seek relief under Code of Civil Procedure section 473, subdivision (d) for lack of proper service of the summons and complaint, defendant still fails to provide a declaration indicating he was not served.

If the tentative ruling is uncontested, it shall become the order of the court without the need for a formal order.

2:00 PM

LINE 8

26-UDL-00970 DOUGLAS SCOTT STILLINGER VS. TODD YANCEY, ET AL.

DOUGLAS SCOTT STILLINGER
TODD YANCEY

STEVEN T. NAUMCHIK

DEFENDANT TODD YANCEY'S MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES (SET ONE) AND TO DEMAND FOR PRODUCTION OF DOCUMENTS (SET ONE), OR, AS TO THE DEMAND, TO COMPEL RESPONSES WITHOUT OBJECTION; REQUEST FOR MONETARY SANCTIONS

TENTATIVE RULING:

The matter is continued to September 29, 2026 at 2:00 PM.



POSTED: 3:00 PM